

BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF:	)	
	)	Case No. 97-005
	)	97-011
HOWARD WEINBERG, Ph.D.	)	
License No. 301- 00640	)	
00596	)	
Respondent.	)	SETTLEMENT AGREEMENT AND FINAL ORDER

COMES NOW the Iowa Board of Psychology Examiners (Board) and Howard Weinberg, Ph.D., (Respondent) and pursuant to Iowa Code sections 17A.10(2) and 272C.3(4) (1999) enter into the following Settlement Agreement and Final Order.

1. Respondent was issued license number 301-00596 to practice psychology in Iowa on September 5, 1989 and Respondent's license is now current.

2. On or about August 21, 1998 the Board, upon a finding of probable cause, filed a Statement of Charges in this case, alleging that the Respondent had engaged in acts violative of the Board's ethical rules and rules governing the practice.

3. The Board has jurisdiction over the parties and the subject matter.

4. Execution of this Settlement Agreement and Final Order constitutes resolution of this contested case. By executing this Settlement Agreement and Final Order, Respondent expressly waives all rights to a hearing on the charges contained in the Statement of Charges and waives any objection to this Settlement Agreement and Final Order.

5. Respondent is freely and voluntarily entering into this agreement and he agrees that the State's attorney may present the

agreement to the Board.

6. This Settlement Agreement and Final Order is subject to approval of the Board. If the Board fails to approve this agreement, it shall have no force or effect to either party.

7. The Board's approval of this Settlement Agreement and Final Order shall constitute the resolution of a contested case proceeding and shall be a FINAL ORDER of the Board.

8. This Settlement Agreement and Final Order is a public record available for inspection and copying in accordance with the requirements of Iowa Code Chapter 22.

9. The terms and conditions imposed by this Settlement Agreement and Final Order shall become effective on the date which it is approved by the Board and the parties agree that upon the satisfactory completion of the terms and conditions imposed herein, the Respondent's license shall be restored to its full privileges.

10. Respondent admits that, had this case proceeded to hearing, the State would have presented evidence to establish that Respondent engaged in practices violative of the Board's administrative rules. Respondent denies that he engaged in any acts violative of the Board's administrative rules.

11. In executing this Settlement Agreement Respondent agrees that patient abandonment and the failure to maintain complete, thorough and appropriate patient records constitute actions violative of the Board's administrative rules and grounds for licensee discipline. Respondent denies that he engaged in any acts violative of the Board's administrative rules.

12. Respondent admits that he is required to maintain a current license in order to practice psychology in Iowa and that practicing psychology in the absence of a current license is violative of the Board's administrative rules.

13. This Settlement Agreement and Final Order shall be part of the permanent record of the Respondent and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

14. In the event Respondent violates or fails to comply with any of the terms of this Settlement Agreement and Final Order, upon notice and the opportunity for a contested case proceeding, the Board may initiate appropriate action to revoke or suspend Respondent's license or to impose other licensee discipline in accordance with Iowa Code section 272C.3(2)(a).

IT IS HEREBY ORDERED:

Iowa Board of Psychology Examiners license number 301-^{00576-rtw}~~00640~~ is suspended for a period of thirty days effective on the date the agreement is approved by the Board. It is further ordered that said suspension shall be stayed so long as the Respondent is in compliance with the additional terms and conditions imposed by this order. During the period of suspension, the Respondent shall not hold himself out to be a licensed psychologist and shall not engage in the practice of psychology. It is further ordered that, commencing with the date this agreement and order is approved by the Board, the Respondent's license shall be place on probation for

a period of one year. In addition, the Respondent must comply with the following terms:

1. Respondent agrees that within forty-five days of the Board's approval of this agreement and order, he shall undergo, at his own expense, a comprehensive and complete psychological assessment, including psychological testing, and further agrees that he shall furnish the Board with copies of the assessment and test results. Said assessment shall be performed by a qualified psychologist pre-approved by the Board. Respondent agrees to submit the names of three qualified psychologists to the Board within five days of approval of this order. The Board shall timely select one of those as the person who shall perform the assessment and testing. The Respondent further agrees that he shall comply with all recommendations made by the qualified psychologist as a result of the assessment and testing performed and agrees that compliance with those recommendations shall be monitored by a member of the Board during the period of probation.

2. Respondent shall comply with the Ethical Principles of Psychologists as specified in the Board's administrative rules and shall comply with all rules promulgated by the Board.

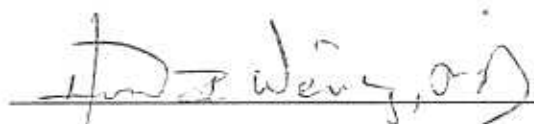
3. Respondent shall successfully complete either a graduate level course in clinical record keeping or 20 hours of continuing education in professional ethics. Proof of successful completion shall be submitted to the Board and any continuing education hours completed as a result of this order shall not count toward the continuing education hours the Respondent must complete as a

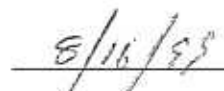
condition of licensure.

4. Respondent agrees to pay a civil penalty in the amount of \$500.00 and further agrees that said penalty shall be paid to the Board within 30 days of this order.

5. During the duration of the terms and conditions imposed by the order, Respondent agrees to make available to the Board any and all records requested for review.

6. Respondent agrees to appear before the Board prior to the completion of the period of probation in order to discuss his compliance with this agreement.


Dr. Howard Weinberg, Ph.D.


Date:

This Settlement Agreement and Final Order is approved by the Iowa Board of Psychology Examiners on Sept 24, 199⁸.


Iowa Board of Psychology Examiners

STATE OF IOWA
BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF:

HOWARD WEINBERG, Ph.D.
License No. 301 - 00596

RESPONDENT

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* CASE NO: 97-005 & 97-011
*
*
* NOTICE OF HEARING
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*

TO THE ABOVE NAMED RESPONDENT:

On the 24th day of July 1998 the Iowa Board of Psychology Examiners concluded that probable cause exists to file a statement of charges and order a hearing in this matter.

IT IS HEREBY ORDERED that a hearing be held upon the Statement of Charges. You are notified that a hearing will be held at 8:30 a.m. on the 13th day of November 1998 at the Hotel Fort Des Moines, Room #318, 10th & Walnut, Des Moines, Iowa.

You may appear personally and be represented by legal counsel at your expense, with the right to produce evidence in your behalf, to examine and cross-examine witnesses and to examine documentary evidence produced against you. If you fail to appear and defend, the hearing will proceed and a decision will be made.

You are hereby notified that the office of the Attorney General is responsible for representation of the public interest in these proceedings. Copies of all pleadings should be served on counsel at the following address:

Jean Davis
Assistant Attorney General
Hoover State Office Building
Des Moines, IA 50319

Dated this 21st day of August, 1998.


Sharon Cook, Board Administrator
Iowa Board of Psychology Examiners

BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF:

HOWARD WEINBERG, Ph.D.

License No. 301-00596,

Respondent.

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Case. No. 97-011
97-005

STATEMENT OF CHARGES

TO THE ABOVE-NAMED RESPONDENT:

The Iowa Board of Psychology Examiners has jurisdiction over this matter pursuant to Iowa Code chapters 17A, 154B, and 272C (1995) and (1997).

Licenses issued by the Board are subject to the laws of the State of Iowa and to the administrative rules of the Board.

Respondent Howard I. Weinberg Ph.D., was at all times during the following events licensed to practice psychology. Respondent was issued license number 301-00596 to practice psychology in the State of Iowa on September 5, 1989, as recorded in the permanent records in the office of the Board.

Respondent's address as reported to the Board is P. O. Box 3417, Suite 304, Iowa City, Iowa, 52244.

COUNT I

Respondent is charged with violating Iowa Code section 272C.10(3) and 645 Iowa Administrative Code sections 240.212(1)(c) and 240.212(14) by engaging in unethical conduct or conduct harmful or detrimental to the public and by failing to comply with the *Ethical Principles of Psychologists and Code of Conduct of the American Psychological Association (Code of Conduct)*, incorporated

by reference in the aforementioned rule. Specifically, Respondent failed to comply with sections 1.13(a) and (c), 1.14, and 4.08 of the *Code of Conduct* when he engaged in actions causing harm to patients.

CIRCUMSTANCES

1. Respondent was employed at a mental health counseling and treatment center (hereinafter center) located in eastern Iowa from 1994 until on or about March 4, 1997. Respondent was the clinical administrator at the center and also practiced as a clinical psychologist providing direct care to 17 to 20 patients per week.

2. Sometime prior to March 4, 1997 Respondent became disgruntled with various internal policies and procedures governing the operation of center, including but not limited to mileage reimbursement policies and procedures.

3. On or about March 4, 1997 Respondent had approximately seven patients on his treatment schedule, including Patient #1 who was waiting for the Respondent at the time he arrived at the office on that date.

4. Patient #1 was in the office on that date because Respondent was supposed to arrange for an out of state hospitalization for the purpose of treating her worsening condition.

5. Upon arriving at the office Respondent read a note from his employer regarding his mileage reimbursement. Respondent became upset, leaving a note that he was resigning employment effective immediately.

6. Respondent proceeded to leave the clinic without seeing Patient #1, without securing the out of state hospitalization for Patient #1 and without seeing the patients on his treatment schedule for March 4, 1998.

7. Respondent left the clinic without securing necessary treatment alternatives for his patients thereby permitting his personal problems and conflicts to interfere with his effectiveness as a psychologist and failing to take reasonable steps to avoid harming his patients.

8. Patient #1 was harmed by Respondent's actions on or about March 4, 1997 and continued to be harmed thereafter.

9. Respondent actions on or about March 4, 1997 constituted unethical conduct and actions harmful and detrimental to the public thereby providing the Board with jurisdiction to take disciplinary action.

COUNT II

Respondent is charged with violating Iowa Code section 272C.10(3) (1997) and 645 Iowa Administrative Code 240.212(6) and 240.212(14) and sections 1.14 and 1.22(b)(c) of the Code of Conduct by failing to provide appropriate supervision to the employees entrusted to his supervision.

CIRCUMSTANCES

1. In addition to the clinical responsibilities Respondent had at the center referred to in Count I above, Respondent was also responsible for the supervision of at least three other employees of the center.

2. Respondent's supervision duties for the employees to whom he was assigned included case reviews, reviewing charts and case notes, assisting with plans of care and general oversight of the of the work performed and care provided.

3. Respondent resigned without first securing alternative supervision for those employees entrusted to his supervision.

4. Respondent failed to provide proper and appropriate supervision and engaged in actions constituting negligent supervision.

5. Respondent has engaged in conduct providing the Board with jurisdiction to take disciplinary action.

COUNT III

Respondent is charged with violating 645 IAC 240.212(14) and sections 1.24 and 5.40 of the Code of Conduct by failing to maintain complete, thorough and appropriate records of therapy and counseling services provided to several patients.

CIRCUMSTANCES

1. In the course of conducting its investigation the Board reviewed patient treatment records for patients treated by the Respondent, including patient records for patients to be seen by the Respondent on March 4, 1997.

2. Respondent failed to maintain complete, thorough and appropriate records of treatment and counseling services provided inasmuch as his records lacked complete SOAP documentation; lacked sufficient detail and information so as to alert other practitioners to the patient's clinical conditions and treatment

plan; were insufficient to support a claim for third party payment; and failed to meet minimally acceptable standards for record keeping.

COUNT IV

Respondent is charged with violating 645 IAC 240.9(2) by failing to pay the required renewal fee when due and by continuing to practice after his license had lapsed.

CIRCUMSTANCES

1. On or about May 1996 Respondent was sent a standard license renewal notice from the Bureau of Professional Licensure. Respondent return the information required for renewal and sent a check for payment of the required fee.

2. Respondent's check for his license renewal was returned dishonored due to insufficient funds.

3. On or about December 31, 1996 Respondent was informed that his check for the renewal fee had been returned and he was informed that he must pay the required fee in order to secure a timely renewal.

4. Respondent did not present payment of the renewal fee as required by the Board's rules and as a result, his license to practice psychology lapsed as of July 31, 1996.

5. Respondent continued to practice psychology after July 31, 1996 even though his license had lapsed.

FINDING OF PROBABLE CAUSE

On July 24, 1998, the Iowa Board Psychology Examiners found probable cause to file this Statement of Charges and the Order

which accompanies this Statement of Charges and to order that a hearing be set in this case.

Executed this 21 day of August, 1998.

Scott Schafer, By M. Bledsoe, Bureau Chief

Scott Schafer, Ph.D., Board Chair

Iowa Board of Psychology Examiners